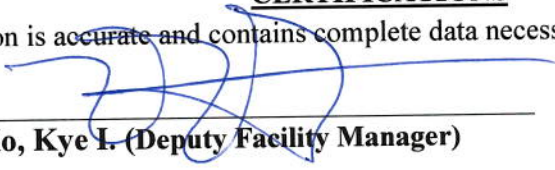


Sole Source JOFOC JUSTIFICATION for OTHER than FULL and OPEN COMPETITION

1. I recommend that Embassy Islamabad, Pakistan use other than full and open competition for the acquisition of MULTISTACK Air Stack chiller parts from the sole source MULTISTACK LLC.
2. **Acquisition/Order Reference Number:**
ILMS Ariba PR15184089, ISB-FAC DHRC PARTS,
Estimated price: \$46,612
Vendor Name: MULTISTACK LLC.
3. **Requesting Office for this Acquisition:** U.S. Embassy Islamabad (FACILITIES)
4. **Nature and/or description of the action being approved:**
Brand Name/Exact Match Only. MULTISTACK Air Stack replacement parts are being ordered for the chillers installed in the Embassy compound
5. **A description of the supplies or services required to meet the agency's needs:**
Post's buildings were constructed with only MULTISTACK Air Stack chillers containing proprietary equipment. Thus, we must acquire MULTISTACK replacement parts from MULTISTACK LLC authorized distributor/dealer.
6. **An identification of the statutory authority permitting other than full and open competition:**
Sole Source/Brand reference below:
FAR 6.302-1: "Only one responsible source and no other supplies or services will satisfy agency requirements. (a) Authority.(1) Citations: 10 U.S.C. 2304(c)(1) or 41 U.S.C. 3304(a)(1)." This vendor is the only source available, but also, is considered the only source under sub-paragraph (a)(2)(ii) of the referenced paragraph: "Supplies may be deemed to be available only from the original source in the case of a follow-on contract for the continued development or production of a major system or highly specialized equipment, including major components thereof, when it is likely that award to any other source would result in— (A) Substantial duplication of cost to the Government that is not expected to be recovered through competition;
7. **A demonstration that the proposed contractor's unique qualifications or the nature of the acquisition requires use of the authority cited** (required for sole source, and unusual & compelling urgency where more than one offer will not be solicited):
MULTISTACK is the sole manufacture of chillers Parts to the Federal Government. American Embassy Islamabad has a Chillers installed by the MULTISTACK. The chiller at NEC is designed, manufactured, and installed by MULTISTACK. As M/S MULTISTACK LLC.
8. **Describe efforts to ensure that offers are solicited from as many potential sources as is practicable:** This is a Sole Source Justification for MULTISTACK LLC supplies. No other supplier can meet the post needs. NO SUBSTITUTIONS ARE ACCEPTABLE.
9. **Contracting Officer Determination that the anticipated cost to the USG will be fair and reasonable:**
Procurement will work/negotiate with MULTISTACK LLC for a reasonable cost.
10. **Describe the market survey conducted and results, or reasons why a market survey was not conducted:** Full and open competition is encouraged to the maximum practicable extent.
11. **Any other facts supporting the use of other than full and open competition:** N/A
12. **A listing of sources, if any, that expressed, in writing, an interest in the acquisition:** N/A
13. **A statement of the actions, if any, the agency may take to remove or overcome any barriers to competition before any subsequent acquisition for the supplies or services required:**
Post strives not to require brand-name requirement if other options are available.

CERTIFICATIONS

I certify that this justification is accurate and contains complete data necessary to support the JOFOC recommendation.



Ko, Kye L. (Deputy Facility Manager)

3/26/2021

Date

Per authority granted me by FAR 6.304(a)(1), I approve other than full and open competition for this acquisition.

Brian Fitzpatrick
(Contracting Officer for the United States Government)

Date